

21STCV37308 21STCV37308

County: los-angeles

Division: Civil Law and Motion

Department: 734

Hearing date: 2026-09-03

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C734%2C09%2F03%2F2026

Source SHA-256: 4c286572e61f7c8c15de74d1d5b1cf16490f691f3cab627acb9d8ecff70d1f7

Case Number: 21STCV37308 Hearing Date: September 3, 2026 Dept: 734

The

following tentative ruling is issued pursuant to Rule of Court 3.1308 at 1:33 PM on September 2, 2026.

Rule

of Court 3.1308(a)(1) provides that a “tentative ruling will become the ruling of the court if the court has not directed oral argument by its tentative ruling and notice of intent to appear has not been given.”

The

Court does not desire oral argument on the motion addressed herein. Notice of intent to appear is REQUIRED pursuant to California Rule of Court 3.1308(a)(1).

No

later than 4:00 p.m. on September 2, 2026, the moving and opposing parties must provide notice to ALL OTHER PARTIES and the staff of Department 734 whether the party intends to (1) appear and argue the motion, or (2) submit to the tentative ruling.

Notice to Department 734 should be sent by

email to , with opposing parties copied on the email. The high volume of telephone calls to Department 734 may delay the Court's receipt of notice, so telephonic notice to 213-830-0776 should be reserved for situations where parties are unable to give notice by email.

Plaintiffs allege that there was a Battery

Defect in the 2019 Chevrolet Bolt Plaintiffs

leased, and Defendant has failed to repair the vehicle to conform to warranties.

The parties

settled the case and Plaintiffs now move for attorney's fees, costs and expenses.

TENTATIVE RULING

Plaintiffs John Scandurra and Premini

Scandurra's motion for attorney's fee is DENIED as untimely.

ANALYSIS:

Request For Judicial Notice

Plaintiffs'

request for judicial notice of various trial court rulings is DENIED as not relevant to the disposition of this matter as they are not binding on this Court. The Court need only take judicial notice of relevant materials. (Mangini v. R.J. Reynolds Tobacco Co. (1994) 7 Cal.4th 1057, 1063, overruled in part on other grounds noted in In re Tobacco Cases II (2007) 41 Cal.4th 1257, 1276.) The Court may deny a request for judicial notice of material unnecessary to its decision. (Rivera v. First DataBank, Inc. (2010) 187 Cal.App.4th 709, 713.)

Discussion

The parties settled the case. Plaintiffs move for an award of attorney's fees, costs and expenses.

In the Opposition,

Defendant argues that this attorney's fees motion is untimely and should be denied in its entirety. For the reasons set forth below, the Court agrees.

On March 11, 2025, Plaintiffs filed a Notice of Settlement. On July 3, 2025, the Court ordered the case dismissed without prejudice pursuant to the parties' stipulation. The clerk was ordered to give notice. (July 3, 2025 Minute Order.) Very recent case law holds that the time to file and serve a motion for attorney's fees is the earlier of 60 days after service of notice of dismissal or 180 after the entry of dismissal. The clerk gave notice on July 3, 2025 by electronic transmission. The 60-day time limit began to run on July 3, 2025 and expired on September 1, 2025. Even the 180-day deadline expired on December 30, 2025.

Because notice was waived, the 60 day time-limit began to run on October 10, 2025 and expired on December 9, 2025. The filing and service of the instant motion for attorney's fees on March 27, 2026 was untimely.

Rule 3.1702 of the California Rules of Court governs motions for attorney fees in civil cases. (Id., rule 3.1702(a); *Carpenter v. Jack in the Box Corp.* (2007) 151 Cal.App.4th 454, 462 [59 Cal.Rptr.3d 839].) A motion for fees incurred up to the time of judgment in the trial court “must be served and filed within the time for filing a notice of appeal under rules 8.104 and 8.108 in an unlimited civil case.” (Cal. Rules of Court, rule 3.1702(b)(1), italics added.) With exceptions not relevant to this appeal, the time for filing a notice of appeal is the earlier of 60 days after service of notice of entry of judgment or 180 days after entry of judgment. (Id., rule 8.104(a)(1).) A voluntary dismissal is “effectively a ‘judgment’” within the meaning of the rule prescribing the time to appeal. (*Sanabria v. Embrey* (2001) 92 Cal.App.4th 422, 427 [111 Cal.Rptr.2d 837] (*Sanabria*); accord, *Catlin Ins. Co., Inc. v. Danko Meredith Law Firm, Inc.* (2022) 73 Cal.App.5th 764, 781 [288 Cal.Rptr.3d 773] (*Catlin*).) Thus, “the clock starts to run [on the time to move for attorney fees] from either the service of notice of entry of judgment or dismissal (starting a 60-day clock), or if no such notice is given, the entry of judgment or dismissal (starting a 180-day clock).” (*Catlin*, at p. 781.)

...

[*649]

Rule 3.1702 of the California Rules of Court does not require an appealable order or judgment even though it uses “the time for filing a notice of appeal” to set the deadline for serving and filing a motion for attorney fees. (Cal. Rules of Court, rule 3.1702(b)(1).) A voluntary dismissal, though not appealable, starts the clock running on the time to move for attorney fees when the dismissal concludes the litigation and triggers a right to fees. (Citations omitted.) As the *Sanabria* court explained when considering the predecessor to rule 3.1702 (which also used the time to file a notice of appeal as the time to move for attorney fees), the rule “was adopted in order to provide time limits within which all motions for attorney fees in civil cases must be made,” including cases that end in a voluntary dismissal. (Citation omitted.) The nonappealability of the dismissal the parties agreed to as part of the settlement therefore does not prevent use of the dismissal date as the date on which the time to move for

attorney fees began to run.

We must next determine

the date of dismissal. With exceptions not relevant to this case, when a case settles the plaintiff “must serve and file a request for dismissal of the entire case within 45 days.” (Cal. Rules of Court, rule 3.1385(b), *italics added*.) If the plaintiff does not do so, “the court must dismiss the case 45 days after it receives notice of settlement unless good cause is shown why the case should not be dismissed.” (*Ibid.*, *italics added*.) On June 2, 2023, Hatlevig’s counsel notified the trial court the case had settled, and the court ordered a dismissal filed within 45 days. Apparently to satisfy due process requirements, the clerk later mailed the parties notice the case would be deemed dismissed without prejudice on August 15, 2023, unless a dismissal was filed or a party showed good cause why the case should not be dismissed. (Citation omitted.) That date came and went, but no dismissal was filed and no good cause was shown why the case should not be dismissed. When a case settles, “a dismissal of the action generally follows as a matter of law. (Cal. Rules of Court, rule 3.1385(b).)” (Citation omitted.) Hence, consistent with the notice of dismissal, the case was dismissed without prejudice on August 15, 2023.

We acknowledge no dismissal order was filed in the case until June 17, 2024, when the trial court signed a minute order dismissing the operative complaint without prejudice. But that date is not the date of dismissal for purposes of starting the clock running on the time Hatlevig had to move for attorney fees. By filing the motion on August 31, 2023, Hatlevig implicitly acknowledged the case had been dismissed, because a dismissal or judgment in favor of the party seeking fees is a predicate to a fee award. (Citations omitted.) In denying the motion, the trial court referenced the notice of dismissal and stated, “[T]his case was dismissed on August 15, 2023, since no cause was shown why it should not be.” The subsequent dismissal order states, “The court was previously notified the case settled in its entirety,” and “Case is dismissed.” When we consider the entire dismissal order and the surrounding circumstances, as we must (citation omitted), we conclude the court entered the order to fulfill the mandatory duty to dismiss settled cases (Cal. Rules of Court, rule 3.1385(b)) and intended it as a *nunc pro tunc* correction of the failure to file a dismissal order on August 15, 2023 (Citation omitted.)

Our conclusion the case was voluntarily dismissed on August 15, 2023, compels the conclusion the motion for attorney fees was untimely. Hatlevig had at most 180 days after the dismissal to serve and file his motion. (Cal. Rules of Court, rules 3.1702(b)(1), 8.104(a)(1); Catlin, *supra*, 73

Cal.App.5th at p. 781.) One hundred eighty days after the dismissal was February 11, 2024. Hatlevig filed his motion before that date (on Aug. 31, 2023), but he did not serve it until nearly two months after February 11, 2024 (on Apr. 4, 2024). The trial court therefore did not err in denying the motion as untimely. (Citations omitted..)

[*651]

III.

DISPOSITION

The order denying the motion for attorney fees is affirmed. Respondent is entitled to costs on appeal.

(Hatlevig v. General Motors LLC (2026) 118 Cal.App.5th 644, 648-651 [bold emphasis added].)

Plaintiff argues that Defendant seeks an improper retroactive application of Hatlevig, and that the instant case is distinguishable from Hatlevig in any event, because the parties' stipulation for the retention of jurisdiction reserved the issue of fees: "the Parties are in agreement the Court dismiss this case with prejudice and retain jurisdiction pursuant to California Civil Procedure 664.6 to enforce settlement including Plaintiffs' attorneys' fees, costs, and expenses and funding of such." (Joint Stipulation to Dismiss and Retain Jurisdiction at 2:7-9.) However, the dismissal of the case was complete on July 3, 2026 when the Court accepted the stipulation and entered the order of dismissal. Section 664.6 does not allow resurrection of a dismissed case for all purposes; it simply provides the Court with a limited authority upon settlement: "the court may dismiss the case as to the settling parties without prejudice and retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement." (Code Civ. Proc. § 664.6(a).) Plaintiff's argument would allow the parties to expand the limited parameters of Section 664.6 by stipulation, which would contravene the fundamental rule that parties cannot confer subject matter jurisdiction upon a court by consent, waiver or estoppel. (Housing Group v. United Nat. Ins. Co. (2001) 90 Cal.App.4th 1106, 1113.)

As such, the motion for attorney's fee is DENIED as untimely.